

Chandra Prakash Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 December 2021 · WRIT - C No. 25762 of 2021 · **Writ disposed; petitioner relegated to clause 6.5; demand to abide.**

HEADNOTE

A writ against a demand notice on an alleged incorrect bill is disposed of without opinion on merits, relegating the consumer to a paragraph 6.5 objection/representation before the Executive Engineer. The demand shall abide that decision. Coercive action is stayed for five weeks or until decision, whichever is earlier, if Rs 50,000 is deposited within a week.

FACTUAL SUMMARY

Chandra Prakash Singh filed a writ in the Allahabad High Court challenging a demand notice dated 18 July 2019 said to rest on an incorrect electricity bill. On 21 October 2021 the Court granted the distribution company five days to take instructions and listed the matter as fresh. At the 4 December 2021 hearing, counsel for the licensee stated on instructions that the petitioner could lodge an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3, who would decide it in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-relegation-to-clause-6.5

HOLDING

Without expressing any opinion on merits, a writ challenging a demand notice arising from an alleged incorrect bill is disposed of by giving the consumer liberty to file a representation/objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, which the Executive Engineer shall consider and decide in accordance with law after hearing; the impugned demand shall abide that decision, and coercive action is stayed for a short period on deposit of a specified sum. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court disposed of the writ without deciding the correctness of the 18.07.2019 demand and sent the consumer to the statutory paragraph 6.5 objection before respondent no. 3. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The licensee's statement that a paragraph 6.5 objection would be considered time-bound was accepted as the statutory path for an alleged incorrect bill. ¶ 3-4

6.5-representation-as-appropriate-remedy Liberty was granted to submit a representation/objection under paragraph 6.5 within two weeks, to be decided preferably within three weeks after hearing. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 18.07.2019 AND THE UNDERLYING BILL

The Court expressly declined to opine on merits; the demand is to abide the clause 6.5 decision. ¶ 4